



Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
Title	Copy of TERMINATION OR RESIGNATION
Code	po4140
Status	Second Reading
Adopted	October 22, 2007
Last Revised	November 19, 2018

4140 - **TERMINATION OR RESIGNATION**

The employment of a classified staff member may, upon a majority vote of the Board of Education, be suspended and/or terminated for violation of Board policies and in accordance with the criteria and procedures set forth in the ~~Civil Service rules~~, Ohio Revised Code, applicable terms of any collectively-bargained agreement, as appropriate.

It is the policy of the Board that classified staff who are not going to be rehired be given an opportunity to resign.

Notice of the Board's intention to terminate a classified staff member shall be given by regular mail with a certificate of mailing, electronic mail with proof of delivery, or other method with proof of delivery.

Any classified employee who fails to maintain a required license, certificate, or permit throughout the term of employment will be immediately suspended without pay and such failure is grounds for termination.

A classified staff member under contract may resign by filing a written resignation with the Treasurer or the Superintendent at least thirty (30) days prior to the effective date of the resignation unless an earlier date is permitted by the Board.

A resignation, once accepted by the Board, may not then be rescinded.

Reporting Professional Misconduct

The Superintendent will file a report to the Ohio Department of Education, on forms provided by the Department for that purpose, matters of professional misconduct on the part of certain classified employees who are also licensed by the Ohio Department of Education (e.g., aides with a permit, paraprofessionals with a license, and those individuals who do not hold a valid educator's license but who are employed by the Board under a Pupil Activity Supervisor Permit), in those specific circumstances set forth in State law and Policy 8141, including a conviction of the staff member of certain enumerated crimes and/or in conjunction with the non-renewal or termination of a licensed staff member, or resignation by a licensed staff member under threat of same and/or during the course of an investigation, for conduct which is determined to be unbecoming to the teaching profession. Reports of any investigation regarding whether or not a licensed classified staff member has committed an act or offense for which the Superintendent is required to make a report to the Ohio Department of Education shall be kept in the personnel file of the classified staff member. Should the Ohio Department of Education determine that the results of that investigation do not warrant initiating an action suspending, revoking, or otherwise limiting that classified employee's license or permit, the report(s) of any investigation will be moved to a separate public file.

Revised 12/15/08

Legal

R.C. 3319.081, 3319.31, 3319.313, 3319.39

A.C. 3301-73-21